

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No.68314 of 2023

Asmani Khatun @ Ashma
.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Dewan Md. Abu Obyed Hossain, Advocate

.... For the petitioners

Mr. Sujit Chatterjee, D.A.G.

... For the State

Heard and Judgment on 13.02.2024.

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in Motijheel Police Station Case No.06 dated 04.02.2020 corresponding to G.R. Case No.38 of 2020 under Sections 8/9/10/11 of the Santras Birodhi Ain, 2009 (as amended 2013), now pending in the Court of Chief Metropolitan Magistrate, Dhaka and/or pass such other or further order or orders as to this Court may seem fit and proper.

Mr. Dewan M.A. Obyed Hossain, learned Advocate for the petitioner submits that accused petitioner Asmani Khatun @ Ashma was

arrested by police on 04.02.2020 at 15.00 hours from the footpath in front of Hotel Star and from her possession a mobile phone was recovered which showed her connections with the activities of proscribed militant organization namely Jamayetul Muzahid Bangladesh.

The learned Advocate submits that the petitioner is in custody in connection of this case for more than four years. She is a woman and she has kids. The investigation of this case has not yet been concluded. No incriminating materials namely explosive or arms or any militant literature was recovered from her possession.

Mr. Sujit Chatterjee, the learned Deputy Attorney General raises objection against granting of bail to the petitioner at this point of time.

We have considered the submissions of the learned Advocates for respective parties and carefully examined all materials on record.

The petitioner is a woman and she is mother of several kids. She is in custody in connection of this case for more than four years. No arms or explosives was recovered from her possession. She has made a confession under Section 164 of the Code of Criminal Procedure. But she did not implicate herself with the commission of any violent activity.

On consideration of above materials on record, we find substance in this petition under Section 498 of the Code of Criminal Procedure and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is made absolute.

Let accused-petitioner Asmani Khatun @ Ashma, daughter of late Shamsul Haque be enlarged on bail subject to furnishing bail bond to the satisfaction of the learned Chief Metropolitan Magistrate, Dhaka.

The learned Judge of the Court below is at liberty to cancel the bail of the accused-petitioner if he misuses the privilege of bail in any manner whatsoever.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.

MD. MASUDUR RAHMAN
BENCH OFFICER